

TENTATIVE RULING

Case: **Gorenberg v. City of West Sacramento**
Case No. CV2026-0728

Hearing Date: **April 2, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner Carol Gorenberg's unopposed petition for order relieving petitioner from provisions of Government Code section 945.4 is **DENIED WITHOUT PREJUDICE**. (Gov. Code, § 946.6.) A petition made to the court for an order relieving a petitioner from Government Code section 945.4 requires the petition to show: (1) the application was made to the board under Government Code section 911.4 and was denied or deemed denied; (2) the reason for petitioner's failure to present the claim within the time limit specified in Government Code section 911.2; and (3) the information required by Government Code section 910. (Gov. Code, § 946.6, subd. (b).) Although petitioner's petition provides the information required by Government Code section 946.6, subdivisions (1) and (2), the Court finds that the petition fails to provide the information required by Government Code section 946.6, subdivision (3).

The notice of petition provides notice of this Court's tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Mota v. City of West Sacramento**
Case No. CV2025-1324

Hearing Date: **April 2, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Union Pacific Railroad Company's motion to strike portions of plaintiffs Harold Stark and Lillian Stark's (collectively, "plaintiffs") first amended complaint for damages ("FAC") is **GRANTED IN PART WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., §§ 435, 436.)

First, pursuant to the parties' agreement during their phone call on February 12, 2026, the Court strikes, without leave to amend, paragraph 48 of plaintiffs' FAC. (Schroeder further decl. [filed March 12, 2026], ¶¶ 3-4; Dingwall decl. [filed March 20, 2026], ¶ 3.) Second, as to plaintiffs' second cause of action, the Court finds that plaintiffs have alleged sufficient facts to show defendant acted with "a conscious disregard of the probability of injury to others." (*Peterson v. Superior Court* (1982) 31 Cal.3d 147, 160; see also *Hoch v. Allied-Signal, Inc.* (1994) 24 Cal.App.4th 48, 61; Civ. Code, § 3294; FAC, ¶¶ 25-30, 32-37, 41, & 50-55.) While plaintiffs have not alleged "the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice [by] an officer, director, or managing agent of the corporation," defendant has not established that this information must be alleged in the FAC to assert a request for punitive damages. (Civ. Code, § 3294, subd. (b); see *Cruz v. Homepage* (2000) 83 Cal.App.4th 160, 167.)

Defendant shall file an answer to plaintiffs' FAC by no later than **April 13, 2026** (10 days after the hearing). (See Code Civ. Proc., § 472a; see also Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.